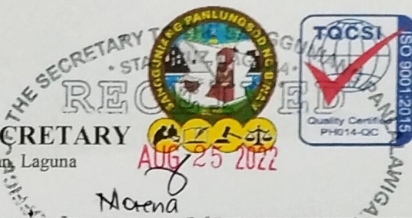




Republic of the Philippines
Province of Laguna
City of Biñan

OFFICE OF THE CITY COUNCIL SECRETARY

2nd Floor City Annex Bldg., Brgy. Zapote, City of Biñan, Laguna
(049) 513-5063 / 513-5064



**ORDINANCE APPROVED BY THE CITY COUNCIL OF BIÑAN, LAGUNA IN ITS REGULAR SESSION
HELD AT THE AMBROSIO RIANZARES BAUTISTA HALL, CITY HALL ANNEX BUILDING, BARANGAY
ZAPOTE, CITY OF BIÑAN, PROVINCE OF LAGUNA DATED AUGUST 1, 2022.**

PRESENT:

Hon. ANGELO B. ALONTE	- City Vice Mayor/Presiding Officer
Hon. JONALINA R. REYES	- Councilor
Hon. ROMMEL R. DICDICAN	- Councilor
Hon. FLAVIANO D. PECAÑA, JR.	- Councilor
Hon. CHRISTOPHER A. ALBA	- Councilor
Hon. JAYSON A. SOUZA	- Councilor
Hon. VICTOR L. CARIÑO	- Councilor
Hon. ELMARIO B. DIMARANAN	- Councilor
Hon. RAFAEL L. CARDEÑO, JR.	- Councilor
Hon. ALVIN Z. GARCIA	- Councilor
Hon. ELVIS D. BEDIA	- Councilor
Hon. RODOLFO C. MONTAÑEZ, JR.	- ABC-Federation President
Hon. MA. ANGELICA QUERUBIN A. ALONTE	- SK-Federation President
IRENE D. BALIDO, MPA	- OIC, City Council Secretary

GUESTS:

Mr. GERONIMO D. ROMANTIGUE	- Former Councilor
Mr. JAIME M. SALANDANAN	- Former Councilor

ABSENT:

Hon. LIBUNERO O. ALATIIT	- Councilor (Sick Leave)
Hon. JOSE FRANCISCO RUBEN P. YATCO	- Councilor (Vacation Leave)

CITY ORDINANCE NO. 5-(2022)

AN ORDINANCE AMENDING SECTION 10 OF CITY ORDINANCE NO. 11-(2019) ENTITLED, "AN ORDINANCE MANDATING THE INSTALLATION OF CLOSED-CIRCUIT TELEVISION (CCTV) OR VIDEO SURVEILLANCE SYSTEM (VSS) IN THE PREMISES OF CERTAIN BUSINESS ESTABLISHMENTS WITH A CAPITALIZATION OF FIVE HUNDRED THOUSAND PESOS (P500,000.00) AND ABOVE: SCHOOLS AND OTHER LEARNING INSTITUTIONS, REGARDLESS OF THE AMOUNT OF CAPITALIZATION; AND PUBLIC PLACES; PROVIDING PENALTIES FOR VIOLATION THEREOF AND FOR OTHER PURPOSES".

Author: Hon. ROMMEL R. DICDICAN

Chairman, Committee on Police Matters, Public Welfare and Safety

WHEREAS, pursuant to Section 16 of the Local Government Code of 1991 (RA 7160), otherwise known as General Welfare Clause, provides that "Every local government unit shall exercise the powers expressly granted, those necessarily implied therefrom, as well as powers necessary, appropriate, or incidental for its efficient and effective governance, and those which are essential to the promotion of the general welfare. Within their respective territorial jurisdictions, local government units shall maintain peace and order, and preserve the comfort and convenience of their inhabitants".

WHEREAS, Sec. 447 of the Local Government Code of 1991 (RA 7160) provides that local government units may “maintain peace and order by enacting measures to prevent and suppress lawlessness, disorder, riot, violence, rebellion or sedition and impose penalties for violations thereof”;

WHEREAS, the use of CCTV cameras has been proven to be an incredibly useful tool in aiding the police in investigations, preventing thefts and other crimes, protecting the company and employees against physical or verbal attacks from the general public, settling of disputes and keeping of records;

WHEREAS, there are numerous unsolved cases in the City Government of Biñan that are mostly happening inside the premises of establishments such as thefts, robberies, including other customer’s complaints; and records from CCTV cameras will provide vital information for the identification of perpetrators of crimes, cause of accidents, authors of vandalisms and initiators of public nuisance act;

WHEREAS, the City of Biñan is in active pursuit of programs and measures that endeavor to create an environment conducive to the advancement of local trade and commerce and considers business its indispensable partner in the promotion of progress and development;

WHEREAS, in support of peace and order initiatives and public safety objectives and pursuant to DILG Memorandum Circular 2014-119 directing Cities/Capital towns to require the installation of Closed-Circuit Television (CCTV) or Video Surveillance System (VSS) for all business establishments in accordance with Section 16 of Republic act 7160 to support the maintenance of peace and order and public safety.

NOW THEREFORE, BE IT ENACTED AS IT IS HEREBY ENACTED by the Sangguniang Panlungsod of Biñan City in session assembled that:

Section 1. The previous content of said Ordinance under Section 10, is hereby amended as follows:

“Section 10. Minimum Technological Standard. As recommended by the Anti-Cybercrime Group of the Philippine National Police (PNP), the issued ordinance must require the CCTV Systems to have the following minimum specifications:

CAMERA

- a. **High-Definition Analog or at least 2 megapixel Digital Camera**
- b. **0.1 Lux Minimum Illumination**
- c. **2.8mm to 3.6mm Focal Length**
- d. **Auto-Iris Focus Lens (fixed/vari-focal)**
- e. **1/30s to 1/50,000s Shutter Speed**
- f. **≥ 50-meter Infrared Range**
- g. **120dB Wide Dynamic Range**
- h. **Pan and Tilt adjustment of 0 degrees to 180 degrees and Rotate adjustment of 0 degrees to 360 degrees**
- i. **Outdoor cameras must be vandal-proof with IP 66 Weatherproof Casing**

VIDEO

- a. **Hybrid Type (accepts Digital and Analog signal), Minimum of four (4) camera input**
- b. **Video and Audio Stream Input**
- c. **H.264 (Advanced Video Coding) Video Compression and G.711u Audio Compression**

- d. 30 frames-per-second (FPS) recording capability per camera
- e. Analog High-Definition Input (1080p@25FPS, 1080@30FPS, 720@25FPS, 720@30FPS)
- f. Hard Disk Drive storage system with enough capacity to accommodate the prescribed retention period below. (4TB Capacity is approximately sufficient for 40 days of recording for DVR with 4 cameras at 1080p)
- g. Time stamping feature

VIDEO/AUDIO OUTPUT

- a. 720p or 1080p resolution
- b. 30 FPS
- c. At least 10 Megabits per second (Mbps) Video Bitrate and at least 64 Kilobits (Kbps) Audio Bitrate

OTHER SPECIFICATIONS

- a. At least four (4) cameras covering the areas of transaction and risks. When possible, one camera must be facing the street/entrance, with the actual number of cameras to depend on the size of the establishment and nature of business, as determined by the LGU
- b. Centralized power supply for the Video Recorder and Cameras
- c. Uninterruptible Power Supply (UPS) to provide standard and reasonable back-up power to the Video Recorder and Cameras"

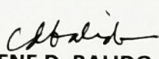
Section 4. Separability Clause. If, for any reason or reasons, any part or provision of this Ordinance shall be held to be unconstitutional or invalid, other parts or provisions hereof which are not affected thereby shall continue to be in full force and effect;

Section 5. Repealing Clause. All Ordinances, resolutions, memoranda, orders and similar issuances, or parts thereof which are inconsistent with any of the provisions of this Ordinance are hereby repealed or modified accordingly;

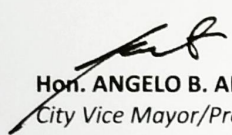
Section 6. Effectivity. This ordinance shall take effect immediately after the approval and compliance with the publication requirements in a newspaper of local circulation.

UNANIMOUSLY APPROVED.

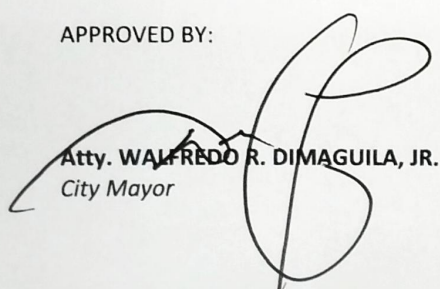
CERTIFIED CORRECT:


IRENE D. BALIDO, MPA
OIC, City Council Secretary

ATTESTED BY:


Hon. ANGELO B. ALONTE
City Vice Mayor/Presiding Officer

APPROVED BY:


Atty. WALFREDO R. DIMAGUILA, JR.
City Mayor